

Court No. - 34

Case :- WRIT - C No. - 37906 of 2014

Petitioner :- M/S Torrent Power Ltd.

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Udayan Nandan

Counsel for Respondent :- C.S.C.,B.C. Rai,Baleshwar Chaturvedi

Hon'ble Sudhir Agarwal,J.

1. Heard Sri Udayan Nandan, learned counsel for the petitioner and learned Standing Counsel.
2. This writ petition is directed against award dated 21.04.2014 passed by Permanent Lok Adalat, Agra, in Case No. 97 of 2013, allowing claim of the consumer/respondent no.3, holding that petitioner/opposite party has realized Rs. 19,51,280/- from the aforesaid applicant/consumer illegally and that should be refunded to him by the petitioner within 45 days, failing which the aforesaid amount shall be realized by the applicant along with interest @ 6% till the date of actual payment.
3. Applicant-respondent no.3, M/s B.S. Agricultural Institute Industries, 12/15 AA, Nawalganj, Agra is an industrial establishment, having electrical connection, bearing SC No. 18100. It is engaged in manufacture and marketing of diesel engines, pumping sets and generating set etc. For the purposes of running its industrial unit, electrical load sanctioned to respondent no.3 was 200 KVA. For the purpose of increasing electrical load by 300 KVA, so as to make total load of 500 KVA, respondent no.3 submitted an application dated 23.07.2010, complying with requirements/procedure prescribed in Electricity Supply Code, 2005, as applicable between the parties. It also deposited a sum of Rs. 1000/- as processing fee, vide receipt no. 0726355 dated

13.08.2010. Work completion certificate under the Electricity Safety Rules, issued by approved electrical contractor, was also submitted. Petitioner issued a letter dated 09.09.2010, requiring respondent no.3 to deposit security amount, system loading and service line charges to the extent of Rs. 1,66,900/-; Rs. 3,00,000/- and Rs. 5,97,458/- respectively, which amount was also deposited by respondent no.3 vide cheque no. 273635 dated 20.11.2010 of Canara Bank, SSI Branch against receipt no. 0021590. Respondent no.3 also deposited Rs. 12,000/- on 20.10.2011, through challan in the office of Assistant Director, Electricity Safety Department, U.P. Government, for inspection of transformer.

Respondent no.1, thereafter, installed meter on extended load, vide sealing Certificate dated 20.02.2011. After installation of meter, respondent no.3 raised a demand, as per his requirement vis-a-vis extended contracted load but petitioner issued bills from January 2011, imposing excess demand charge upon petitioner for raising load beyond 200 KVA. Several representations were made by respondent no.3 disputing billing of excess demand charge, but in vain. As a result thereof, petitioner realized a sum of Rs. 15,56,580/- for the period 01.04.2011 to 01.01.2012 illegally, towards excess demand charge, which went to the extent of Rs. 19,51,280/- till 01st March 2013. Respondent no.3, thereafter, filed a complaint before Permanent Lok Adalat.

4. Claim of respondent no.3 was contested by petitioner only on the ground that “Electrical Safety Clearance Certificate” from Director, Electrical Safety Department of U.P. Government was not obtained by petitioner and, therefore, in law, he was not entitled to raise his contracted load beyond 200 KVA, hence, demand of excess charge was absolutely justified.

Respondent no.2, Permanent Lok Adalat, however, found that responsibility to obtain Safety Clearance Certificate from Director, Electrical Safety Department was that of electricity supplier. It could not have released enhanced load, if Electric Safety Certificate was necessary but in the present case, petitioner obtained huge amount from respondent no.3, under the headings of additional security, line charges and system loading charge etc. and it also went to the extent of issuing a fresh sealing certificate by installing a new meter, representing to respondent no.3 that it was entitled to raise demand only as per revised agreement. If there was any fault, that was of petitioner itself. This has been clearly observed by Permanent Lok Adalat in the impugned order dated 21.04.2014, as is evident from the following:

“यद्यपि, विपक्षी सं० ०१ द्वारा प्रेषित पत्र दिनांकित ०९.०९.१० के पैरा-१० के अवलोकन से यह विदित हो रहा है कि विपक्षी सं० ०१ को बढ़े हुए भार वृद्धि को जारी करने से पूर्व इलेक्ट्रिकल सेफ्टी क्लियरेंस अपेक्षित था, तथापि, विपक्षी सं० ०१ का आचरण व कृत्य इसके पूर्ण विरोधाभास में रहे हैं। पत्रावली पर मौजूद कागजात सं० ५८/३१-३३ से यह साबित है कि विपक्षी सं० ०१ द्वारा परिवादी के विद्युत कनेक्शन से संबंधित भार वृद्धि हेतु पुराने मीटरिंग क्यूबिकल (पोटेंशियल ट्रांसफार्मर + करेन्ट ट्रांसफार्मर) बदले गए और इससे संबंधित सील चेन्ज रिपोर्ट भी परिवादी को उपलब्ध करायी गयी । विपक्षी सं० ०१ ने भी अपने प्रतिवाद पत्र के पैरा-०४ में यह स्वीकारा है कि दिनांक २०-०२-११ को करेन्ट ट्रांसफार्मर (सीटी) बदले गए तथा इस कारण गुणक भी बदल कर तीन से छह हो गया।”

“Though from a perusal of para 10 the letter dated 09.09.10 sent by opposite party no.1, it appears that electrical safety clearance was mandatory before issuing increased load by opposite party no.1, yet the conduct and act of opposite party no.1 has been wholly contradictory to it. From paper no. 5C/31-33 available on the record, it is evident that metering cubical

(Potential Transformer+ Current Transformer) was replaced by opposite party no.1, for enhancing electrical load with respect to complainant's electricity connection and relevant seal changing report was also made available to the complainant. Opposite party no.1 has also admitted in para 04 of his written statement that current transformer (CT) was changed on 20.2.2011 and therefore, for this reason, multiplier has enhanced from three to six.” (English Translation by Court)

5. Respondent no.2 Permanent Lok Adalat has also considered, when billing system was changed in the light of enhanced demand, there was no question of not raising demand accordingly, since, multiplier of metering cubical/metering system was also changed, metering system was altered in the light of 500 KVA load. Therefore, the fault, if any, was on the part of petitioner electricity supplier and not of consumer. If the petitioner itself, has failed to coordinate with officials of Electricity Department, in getting the matter examined for the purposes of issuance of safety certificate, for that lapse, consumer cannot be saddled with an extra liability for which it (consumer) was not at fault.

6. Sri Udayan Nandan, learned counsel appearing for petitioner when confronted with the aforesaid situation, could not dispute on this aspect of the matter and also could not show any fault on the part of consumer so as to attract liability of payment of excess demand charge. He, however, submitted that remedy of consumer was available before District Level Grievance Redressal Forum. In this respect, he also could not dispute, if more than one remedy was available to a consumer before different forums, it is his option to avail such remedy, as he finds more effective and appropriate. There is no bar under the statute which ousts jurisdiction of respondent no.2, from entertaining complaint of consumer in respect of illegal realisation of certain amount

towards alleged electrical dues and, that being so, it cannot be said that order passed by respondent no.2, lacks jurisdiction.

7. It is really surprising that on one hand, petitioner benefited itself by getting a huge amount from consumer under various heads for the purpose of releasing additional electrical load and thereafter, when the consumer completed all formalities therefor, it was still harassed for something he (consumer) was not responsible at all. Thereafter, when the consumer raised dispute and succeeded before an adjudicatory forum, to force further an unavoidable litigation on him is nothing but a sheer attitude of harassment on the part of petitioner. This writ petition, besides, lacking merit, also shows lack of *bona fide* on the part of petitioner.

8. The writ petition lacks merit and is, accordingly, dismissed with cost quantified to Rs. 25,000/-

Order Date :- 24.7.2014

Akn/shailesh

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Hon'ble Sudhir Agarwal,J.

Dismissed with costs.

For details see my order of date passed on
separate sheets.

Dated:24.7.2014

Shailesh/Akn.